

|    |                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|----|--------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                        | <p>The Court DENIES the Defendant's Motion to Set Aside Default and Default Judgment.</p> <p>The Court orders the Plaintiff to give notice of the Court's ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 11 | 30-2026-01561663<br>FC Orange Associates LP vs. Borden | <p>The Court has read and considered the Plaintiff's Motion to Strike Defendant's Amended Answer to the Complaint (ROA 44) and the Defendant's Opposition (ROA 52).</p> <p>The Court takes Judicial Notice of the Amended Answer (ROA 31) and the Answer (ROA 16).</p> <p>On April 28, 2026, at 4:10 PM, the Defendants filed their original answer in pro per. On May 11, 2026, at 11:23 AM, Defendants thought their new counsel filed an amended answer on the same date as the substitution of attorney filing. Code of Civil Procedure §430.40 allowed the Defendants in this matter to file an amended answer within 10 days after filing their original answer.</p> <p>Defendant's counsel acknowledges that they were one day over the statutory deadline to file an amended answer.</p> <p>In California, public policy favors a trial on the merits rather than based on technical or procedural defaults, particularly in eviction actions where housing is at stake. Addition the Plaintiff alleges no prejudice or harm the Plaintiff suffered based on the small delay in the Defendant's filing.</p> <p>The Court DENIES the Plaintiff's Motion to Strike the Amended Answer.</p> <p>The Court orders the Defendant to give notice of the Court's ruling.</p> |
| 12 | 30-2025-01530495<br>FMMB Big Lakes, LLC vs. Alvarez    | <p>The Court has read and considered the Defendant's Ex Parte Stay of Execution of Writ of Possession (ROA 87) and Plaintiff's Opposition (ROA 94).</p> <p>The Court takes Judicial Notice of the Stipulation for Entry of Judgment (ROA 64) and Judgment-Unlawful Detainer (ROA 66).</p> <p>Defendant argues that the Court should enforce the stipulation signed by the parties and approved by the Court on April 1, 2026. In substance, however, Defendant seeks modification of the Stipulation and an order requiring Plaintiff to accept terms different from those agreed upon by the parties.</p> <p>The Stipulation expressly provides that "no stay of execution of Judgment of any kind or for any reason shall be allowed to any Defendants, or any third party." The Stipulation further states that "Defendants further confirm that they have reviewed this Stipulation with their Counsel."</p> <p>The parties specifically agreed that Defendant was required to close escrow on or before April 30, 2026, pursuant to detailed terms that included transfer by quitclaim deed. According to Defendant's own declaration, the escrow</p>                                                                                                                   |